

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400936	MARTINEZ VS UNITED HEALTH GROUP, INC.	MOTION TO VACATE ORDER RE JURY TRIAL WAIVER BY LAURA PATRICIA MARTINEZ

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff's request for relief is denied. Trial is in approximately 90 days. The potential prejudice to the parties, including opposing defendant, with discovery related issues is more evident as the close of discovery approaches. This court found a CCP 631 waiver on September 10, 2025 yet the instant request for relief was not filed until May 26, 2026. This does not qualify as excusable neglect.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500795	MANSOORI VS WALMART, INC.	MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES SET ONE BY MANSORA MANSOORI

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

On January 30, 2025, Plaintiff filed her Complaint against Walmart and developer/property management company, Rothbart Development Corporation. On August 14, 2025, Plaintiff filed a DOE Amendment naming Vintage Associates, Inc. as a co-defendant.

On September 30, 2025, Plaintiff served an initial set of written discovery upon Defendant Vintage Associates, Inc. including Demand for Production of Documents, Form Interrogatories, Special Interrogatories, and Requests for Admission. Defendant provided objection-only responses on January 14, 2026.

Plaintiff now brings the instant motions to compel Defendant Vintage Associates, Inc. to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Admission. Another motion to compel further responses to the Demand for Production of Documents is set to be heard on June 9, 2026. Plaintiff also seeks monetary sanctions against Defendant for having to bring the instant motions.

In Opposition, Defendant asserts it has provided supplemental responses to all requests at issue making the instant motions moot. Defendant also argues monetary sanctions are not appropriate and the amount requested is excessive and unreasonable.

In Reply, Plaintiff states Defendant provided unverified further responses on the same day Plaintiff's Reply was due (June 1, 2026). Plaintiff argues this means no supplemental responses have been provided yet so the motions are not moot.

Motion to Compel Further Response(s)

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are

accompanied by the declaration of Attorney Robert L. Booker II, who sent one email to opposing counsel after receiving the objection-only responses. (Booker Decl. ¶¶8-9.) It does not appear that the parties meaningfully met and conferred about these issues. However, since Defendant has provided supplemental responses, the lack of meet and confer prior to bringing the motions is inconsequential.

Special and Form Interrogatories

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP § 2030.300(a).) A party can claim an inability to respond if they do not have personal knowledge sufficient to respond to an interrogatory, but they must make a “reasonable and good faith attempt to obtain the information.” (CCP §2030.220(c).) In a motion for an order compelling further response to ROGs, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Defendant asserts it has provided supplemental responses to the interrogatories at issue. In Reply, Plaintiff says Defendant only provided unverified responses which are “tantamount to no responses at all.” (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff is correct that unverified responses do not constitute supplemental responses. However, clearly Defendant is willing to provide supplemental responses. One additional opportunity will be granted. Hearing will be continued with the parties ordered to meet and confer about Defendant’s supplemental responses and a notice of withdrawing hearing if verified responses are provided.

Sanctions

As to the issue of sanctions, the Court retains discretion to impose sanctions for the reasonable expenses incurred in bringing a motion to compel, even if the requested discovery is ultimately provided after the motion is filed. (CRC Rule 3.1348(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409.)

Defendant appears to have only provided supplemental responses because Plaintiff filed the instant motions. However, since Plaintiff did not make a good faith meet and confer effort prior to bringing the motions, sanctions are not warranted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500795	MANSOORI VS WALMART, INC.	MOTION TO COMPEL DEFENDANT VINTAGE ASSOCIATES FURTHER RESPONSES TO SPECIAL INTERROGATORIES SET ONE BY MANSORA MANSOORI

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

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